

THE
PENNSYLVANIA JOURNAL
OF
PRISON DISCIPLINE
AND
PHILANTHROPY.

PUBLISHED QUARTERLY

UNDER THE DIRECTION OF "THE PHILADELPHIA SOCIETY FOR ALLEVIATING THE MISERIES OF PUBLIC PRISONS," INSTITUTED 1787.

"The separation of one prisoner from another is the only sound basis on which a reformatory (prison) discipline can be established with any reasonable hope of success."—*Fifth Report of Inspectors of English Prisons.*

JULY, 1853.

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SOUTHWEST CORNER OF FIFTH AND MINOR STREETS.
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VOL. VIII.

TERMS:—ONE DOLLAR A YEAR IN ADVANCE.

NO. III.

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CONTENTS OF NO. III.

<u>ART. I.—The Former Times and These,</u>	<u>109</u>
<u>II.—Inspectors of Prisons,</u>	<u>117</u>
<u>III.—The Old Ulcer Opened Again,</u>	<u>124</u>
<u>IV.—Prison Matters at the West, and Political Management in General, Affecting Prisons and Prisoners,</u>	<u>128</u>
<u>V.—Uncertainty of Conviction and Punishment,</u>	<u>135</u>
<u>VI.—Recent Occurrences in Philadelphia,</u>	<u>142</u>
<u>MISCELLANEOUS.</u>	
Indiscriminate Almsgiving,	<u>150</u>
Shooting with Red Paint,	<u>154</u>
New Work on Separate Confinement,	<u>155</u>
The Elizabeth Fry Refuge,	<u>155</u>
Ohio Lunatic Asylum,	<u>156</u>
Connecticut State Prison,	<u>156</u>
Not my Mother!	<u>156</u>

NOTICE OF THIS JOURNAL.

“It embodies more information on the subject of prisons, arranged and expressed in the spirit of literature and science, than any other publication of our country and will compare with any Journal devoted to this department of knowledge in Europe.”—*Hon. Charles Sumner’s Speech, in debate on prison question in Boston, May, 1847.*

RECENT NOTICES.

From the North American and United States' Gazette.

We have received from Messrs. E. C. & J. Biddle the last number of the Pennsylvania Journal of Prison Discipline, which is published quarterly, under the direction of the Philadelphia Society for alleviating the Miseries of Public Prisons. A glance through its pages shows what is well understood—that it is a highly valuable periodical, communicating much and various important information upon the subject of which it treats. It is the only publication of the kind in the country, is certainly a very much needed one, and ought, therefore, to be well sustained by the public.

From the Episcopal Recorder.

This periodical gives a large amount of information on Prison Discipline, and cannot fail to interest such as grieve over the sufferings occasioned by crime, and regard the imprisoned criminal as still belonging to our common humanity, and needing the commiseration of the wise and good.

From the Public Ledger.

We have received the October number of the Pennsylvania Journal of Prison Discipline and Philanthropy, published under the direction of the Philadelphia Society for alleviating the Miseries of Public Prisons. It is stored with interesting matter.

From the Presbyterian.

We have been reading with great interest the Pennsylvania Journal of Prison Discipline and Philanthropy.

AN INQUIRY INTO THE ALLEGED TENDENCY OF THE SEPARATION OF CONVICTS, ONE FROM THE OTHER, TO PRODUCE DISEASE AND DERANGEMENT.

BY A CITIZEN OF PENNSYLVANIA. *Philadelphia*: E. C. & J. Biddle. 1849.

It is, as might possibly be anticipated from the residence of the author, an elaborate and ardent defence of the separate system of confinement. The charge of its peculiar tendency to induce disease and insanity, is altogether denied, and the testimony of the successive physicians to the Eastern State Penitentiary, during a term of nearly twenty years, goes very satisfactorily to warrant the denial.

The author is not, however, inclined to rest at this, but carries the war into the enemies' camp. The chapter entitled Medical Practice, in a Congregate Prison, is calculated to attract attention, from the positions laid down in it, and their startling illustrations, deduced from the well known case of Abner Rogers. It is not the time or the place for us to enter on this warmly controverted subject, and we have noticed the work only on account of its bearing on the subject of insanity, and as forming a part of its literature.—*Am. Journal of Insanity, published by the Superintendent of the New York Lunatic Asylum, July, 1850.*

So far as the leading controversy, in regard to the rival systems of prison discipline, is concerned, it seems to us to cover the entire ground with singular ability.—*Princeton Review.*

⇒ A few copies of this pamphlet are still on hand, and may be had on application to the publishers, corner of Fifth and Minor streets, or to any member of the Acting Committee.



See p. 112.

See [p. 112.](#)

THE PENNSYLVANIA JOURNAL OF PRISON DISCIPLINE.

VOL. VIII.—JULY, 1853—No. 3.

ART. I.—THE FORMER TIMES AND THESE.

It is said that every man has his niche. Of course there is a niche for every man, and among others one for *croakers*, and it is very desirable that they should never be seen out of it. We presume we have none of this sort among us, inasmuch as they would instinctively shun the council-chamber of those who look with a hopeful eye upon any and every legitimate project for human improvement. It is excusable in doting age to dwell with a sort of childish satisfaction on the scenes and associations of youth, but no man who is living in good earnest, can fail to be impressed and excited by the vast advance which has been made within an age or two in the condition of the human race.

If there were nothing else to look at but the single institution known as the *Pennsylvania Hospital for the Insane*, with all its wonderful agencies and appointments for ministering to the relief of the direst of all the ills that flesh is heir to, we should exclaim with gratitude to the Author of all good—How marvellous the change! It seems but yesterday that PINEL, with an intrepidity seldom equalled, ordered the restraints to be removed from *fifty-three* confirmed lunatics who had been bound in chains and fetters—some for half a lifetime—and proved, to the amazement of their incredulous keepers, that kindness and confidence would assuage a calamity which

restraint and violence only serve to aggravate. It was a signal triumph of humanity over ignorance and selfishness, and opened the way for a series of efforts, the benign results of which have scarcely a parallel in the annals of benevolence.

If we imagine, for a moment, thousands of men and women, some confined like wild beasts in dens or cages, enduring the most cruel tortures at the hands of their nearest earthly friends, and doomed, for the remnant of their lives, to hopeless and unmitigated suffering; others wandering about half clothed and loathsome in their persons, exposed by night and by day to burning heat or the pitiless storm, teased and pelted by the thoughtless and cruel, and shunned, from fear, by the considerate and humane; and others, still, the subjects of constant anxiety and commiseration to loving friends, who sought in vain for some alleviation of their grievous burden,—we have a picture of what was.

Then, if we turn our eyes to any of the noble institutions which, in these latter times, have been founded and furnished for the reception and treatment of these unhappy beings, and consider how large a proportion of them are entirely relieved of their malady and restored to sound health, and to the ordinary duties and enjoyments of life; and to how large an extent the sufferings of others are alleviated, and their comforts and enjoyments multiplied, we have a picture of what now is, and surely no one can suppress an exclamation of gratitude and wonder at the contrast. This item of human ills once looked upon as so terrific, has been divested of its most appalling features, and reduced, like other diseases, to the control of medical skill, and let the Giver of all good be praised for it.

A sketch, not unlike this in its general features, may be given of the change in the treatment of public offenders. The man is now living in Philadelphia who could describe to us a spectacle which his own eyes might have beheld, in what was then nearly the centre of the population of our beautiful city. It was a prison-house at the corner of Market and Third streets, where all grades of offenders, without distinction of sex, color or age, might be seen mingling together, day and night, as one common herd of vagabonds and outcasts! The most flagrant and thrice convicted offender is here associated with one who is presumed to be innocent, because not proved to be guilty; the old and practised thief with the novice in dishonesty—the forger and counterfeiter with the poor but honest debtor—while, at

short intervals, there creep into this motley crowd, “the disgusting objects of popular contempt besmeared with filth from the pillory—the victim of the whipping post, with blood streaming from his lacerated body, the half naked vagrant and the loathsome drunkard.”

If we survey the exterior, the scene is not less offensive. The miserable tenants are thrusting poles through the windows with bags or baskets suspended at the end, to catch the eye and the gifts of passers, while shouts of mirth or passion, mingled with profane and brutal execrations assail their ears.

It was to such a sink of corruption and iniquity that the attention of benevolent men was turned, and it was to alleviate miseries such as these, that they associated together, some seventy years ago, under the title which they still hold, and which is seen on each number of this Journal. And what has been accomplished by that and kindred agencies?

The eye of a stranger who passes along Coates’ street towards the Schuylkill, is arrested by an imposing structure, giving the impression of strength, permanence and security. But no sound meets his ear, nor is any sign of its use at all visible. Let him enter and survey the interior. In a spacious area he sees long corridors radiating from a common centre, divided into apartments of suitable size, clean and wholesome, and provided with light and air and furniture needful for the tenant. In these corridors are confined at constant and useful labor, three or four hundred men, but it is as quiet as a well regulated workshop, each is unknown to the other, but all known to the officers and authorized visitors. Their food, lodging and attendance in sickness and in health, are good and sufficient. Their understandings are cultivated, and the voice of kindness and sympathy is heard by many there, who have seldom heard it elsewhere all their lives long.

Who does not exclaim, at the sight of such a contrast. How wonderful the transformation, and all too, within the memory of living men!

But let us brace up our nerves and protect our senses while we return for a moment to the prison-scenes of a former day. It is the Lord’s day. The streets of the city are thronged with people wending their way to the various places of public worship, but who thinks or cares for the “gaol-birds?” Shut out from the light and air of heaven, polluted in body and mind, and given

over to work all manner of wickedness greedily, the day which brings repose to the care-worn, and peace to the troubled in heart, is fraught with no good to them.

Yet stay a moment. The sympathy of a disciple and minister of CHRIST —“that friend of publicans and sinners”—is awakened for them. He calls upon the keeper, and proposes to address the prisoners occasionally, in a religious discourse, and to begin on the following Lord’s day. The keeper is amazed at so preposterous a proposition, and expresses his conviction that the attempt would be extremely hazardous, involving not only peril to the preacher himself and to the officers in attendance, but the possible escape of the prisoners, and the consequent pillage and murder of the citizens! Whether this was the result of timidity, or of a design to obstruct all efforts at reformation, is not known; but these and all other scruples were so far overcome, that permission was given to make the trial.

“At the appointed time the clergyman^[1] repaired to the prison, and was received with a reserve bordering on incivility. The keeper reluctantly admitted him through the iron gate to a platform at the top of the steps leading to the yard, where a loaded cannon was placed, and a man beside it with a lighted match! The motley concourse of prisoners were arranged in a solid column extending to the greatest distance which the hall could allow, and in front of the instrument prepared for their destruction in the event of the least commotion.”

[1] Rev. William Rogers, D. D.

This was literally preaching at the cannon’s mouth. The service was attended, however, with entire decorum throughout, many of the prisoners giving respectful attention, and all of them behaving with unexpected propriety. This was as late as 1786-7. Who of our readers has ever attended the religious service on the Lord’s day at the Eastern State Penitentiary, without being impressed with the propriety—we might almost say, the solemnity of the occasion. Each prisoner, separated from his fellows, is able to give undiverted attention to the word spoken, and in the seclusion of his own apartment, with the written Scriptures in his hand, may “read, mark, learn, and inwardly digest” the truth that is able to make him wise unto salvation. He joins in the supplication that ascends to the throne of the heavenly grace, and in the hymns of praise and thanksgiving for the many

mercies that are mingled in his cup of suffering; and who will say that this is not a marvellous spectacle to the eye of one who witnessed the delivery of Dr. Rogers' first sermon in the prison yard!

But another scene opens. Groups of men are laboring in the streets of the city, cleaning and repairing them. Their heads are shaven, and they wear parti-colored clothing, and of course attract the gaze of passers-by. These are prisoners! Goaded to desperation by the taunts and jibes of idle and vicious boys, they have sometimes attempted to revenge their injuries, and to prevent this, they are loaded with iron collars on their necks, and cannon balls or bomb shells "are fastened to their feet by chains to be dragged after them, while they pursue their degrading labor under the eye of keepers armed with swords, blunderbusses, and other weapons of destruction."

It was such a revolting sight as this that prompted our Prison Society to call for a radical reformation—not only for the withdrawal of these wretched men from the public gaze, injurious alike to the public and to themselves, but *for their withdrawal from each other's presence too*, intimating very clearly their conviction that "MORE PRIVATE OR EVEN SOLITARY OR SECLUDED LABOR WOULD MORE SUCCESSFULLY TEND TO RECLAIM THE UNHAPPY OBJECTS, AS IT MIGHT BE CONDUCTED MORE STEADILY AND UNIFORMLY, AND THE KIND AND PORTION OF LABOR BETTER ADAPTED TO THE DIFFERENT ABILITIES OF THE CRIMINALS."

We have put this memorable language in conspicuous letters, as we find in it the germ of all philosophical and truly philanthropic schemes for improvement of prison discipline, which have been devised in the sixty years' interval.

It was an intimation more broadly given in about a twelve-month after, when fifteen of our most distinguished and benevolent citizens, then in active life, with the venerable Bishop White at their head, "thought it their duty to declare, as a matter of the utmost moment to the well being, safety and peace of society, as well as of the greatest importance to the criminals, that from a long and steady attention to the real practical state, as well as the theory of prisons, it was their unanimous opinion that solitary confinement to hard labor, and a total abstinence from spirituous liquors will prove the most effectual means of reforming these unhappy creatures."

From that time, though by slow degrees, the penal discipline of the State has advanced in efficiency as well as humanity, and to see prisoners toiling in irons in our streets now, would be as incongruous to all our feelings and habits, as to see the most imposing mansions in our city converted into Indian wigwams, and savage council fires kindled in Independence Square.

But there is work of vast magnitude still to be done, even within the borders of our own Commonwealth. County prisons come into the line of improvement at long intervals, and too often with a reluctant step. The guiltless are not seldom corrupted by the associations which are here allowed, (and which are, perhaps, inevitable,) and the novice in crime is made reckless and incorrigible before he becomes the subject of penitentiary discipline.

And it is to be borne in mind, too, that our society is not restricted in its interests or sympathies, to the penal institutions of *Pennsylvania*. We would contribute all in our power to the "alleviation of the miseries of public prisons," the country and world over. And it would probably surprise most of our readers to know how many and how aggravated these "miseries" are, even in prisons which boast of eminent superiority. Since we commenced this article, a case has been brought to our knowledge, on indisputable authority, which will serve as an example. A convict was brought from a State-prison to the Lunatic Asylum. He was heavily chained, and the examining physician noticed a circular bruise on his temple, as if made by the nails in the heel of a boot or shoe! The officer in charge of the man represented him as being very violent and unmanageable. Two and a half barrels of water had been showered upon him, he said, but it did not subdue him. It made him pale and cold, but he was obstinate still. He was malicious too, and had secreted a pair of shears, with the intent (as it was believed) to take the life of his keeper, but fortunately the keeper was aware of it, and knocked him down, and by putting his foot on his head, held him till help came, and hence the bruise which had arrested the doctor's attention. He had been kept in a dungeon but without any good effect, and they had authority at last to take him to the Asylum.

The unhappy creature heard this story, but made no reply. The physician of the Asylum ordered his chains to be removed. He was admitted to the ward, like other patients, and had not given them the least trouble!

It seems that prisoners, paupers and pay-patients are intermingled in some Asylums. And we are credibly informed, that since the present year came in, not less than *thirty-six* insane convicts were at one time in the State Asylum at Utica. They are removed from the prison and received at the Asylum as insane, and this is often the end of the sentence. An elopement from the Asylum may perhaps answer all the purposes of a pardon, without the responsibility of it. In one instance, where a convict escaped from the Utica Asylum, notice was given to the authorities of the prison from whence he was received, but no effort was made to re-arrest him, and the fellow was found soon after, following a respectable business in New York city, at \$22 a month and board, and was doing well! The Empire State itself could not probably have done better for him.

Our readers have not probably forgotten the fate of four out of five prisoners in a cell, not a cannon's shot distance from the City Hall in New York. That such an event could occur in any prison which is located, constructed and superintended with ordinary regard to the laws of humanity, is scarcely credible.

In view of such statements, we must admit that the work of prison reform is indeed not yet accomplished. Great ignorance still prevails on the subject. Strong prejudices exist (nurtured, if not engendered by local, personal or professional pride,) against some of the essential features of any true and effective system. Much effort is required to diffuse right opinions, and correct popular errors. Among these last, none is more prevalent or mischievous than that the difference of a few thousand dollars, in the first cost of the structure, should turn the scale in favor of a system which is not, on other accounts, most approved. The true principle which should rule in all questions of this nature, is very obvious. No reasonable expense or pains should be spared in the employment of means to convert a single idler into a worker, or a single rogue into an honest citizen. The mischief which a contemner of laws may do, single-handed, to society, is so indefinite, and, we may almost say, boundless, that we can scarcely conceive of a greater public benefit than his reformation, unless, indeed, it be such a training of his children or his neighbor's children, or both, as shall prevent their following his example. To confine a convict three or five or seven years with a chafed and irritated temper during all that interval, and then dismiss him, a settled and irreconcilable enemy to himself and all about him, is the

worst policy a State can pursue. We do not advocate any course that shall mitigate, in the slightest degree, the legitimate severity of punishment. But we urge it as a matter of public economy, as the dictate of a sound policy, that where two methods of dealing with offenders are at the State's election, one of which gives better promise than the other for the correction of the vicious dispositions and for the restoration to honest society of a single culprit, it should be chosen, whatever claim the other may show on the score of present expense.

We are aware, that in these times, when so many private and party considerations are allowed to mingle with questions of public interest, it will be no easy matter to secure a safe and liberal policy on such a subject as we are considering. But if so great achievements have been made by the good and wise who have lived and acted before us, it ill-becomes us in the light of their example, and with facilities for the work which were unknown to them,—it ill-becomes us to relax our efforts or to refuse any reasonable service or sacrifice, which will complete what they so nobly begun.

ART. II.—INSPECTORS OF PRISONS.

Much of the efficiency and success of any system of prison discipline, depends on the characters and dispositions of those who occupy the post of Inspectors. As it is out of the question for the most judicious and vigilant inspectors to make a prison what it should be, while incompetent persons are employed to execute the discipline, so it is equally out of the question for the most energetic and thoroughly qualified officers to administer successfully the affairs of such an institution, so long as they are subject to the control of incompetent Inspectors. To secure the desired results, there must be marked confidence between these parties, and such a coincidence of opinion and counsel as shall give unity and strength to the administration.

In cases where the appointment of the principal officers of a prison is in the hands of the Inspectors, there is danger that the independence which is so essential to faithful and efficient action, will be put in jeopardy. It requires no ordinary degree of courage to pursue a measure which is likely to involve a sacrifice of one's livelihood, and especially where no moral principle is concerned. It may happen, for instance, that some indulgences are allowed or winked at by the Inspectors, which are in violation of the discipline established by law. If the warden remonstrates against the practice, it may be at the risk of losing his place, and it is easy for him to persuade himself that the responsibility is on the Inspectors, whose servant he is, and that the most discreet course for him is to hold his peace and his place. But we think a wise Board of Inspectors would see to it, that the warden is put at his ease on that point, and that the utmost freedom is enjoyed by him, not as a matter of grace, but of right, in the utterance of all his suggestions and objections.

There is no uniformity in the several States, either as to the appointment of Inspectors or the relations they shall sustain to the public on one side, and to the prison and its inmates and resident officers on the other. In some States they are appointed by the Executive, in others by the Legislature. In some they are popularly elected, and in others (as in Pennsylvania) they are

appointed by the judiciary. Our own impression is, that the appointing power of this class of officers is most properly lodged in the executive department of the government. It is, in its nature, analogous to other duties of this department. It is in the exercise of purely executive authority that the convict is committed, and it would seem fitting that this same power should exercise a suitable control over him, directly or by agents of its own appointment. If the Legislature has exercised its functions in the enactment of the law, with adequate penalties, and the Judiciary has past upon the guilt of a transgressor and fixed the measure of his punishment, one would think the remaining part of the work is peculiarly appropriate to the Executive.

There may be some advantages in giving the Inspectors the appointment of warden and other principal officers, but it is clear that we thereby lose an important check on both parties. There have been many instances of gross official misconduct by Inspectors of prisons, which would probably never have been revealed, had the appointing and removing power been lodged in their hands. It is obviously undesirable to place official parties in such a relation that each should be interested in concealing or palliating the neglects or misdeeds of the other. If each is made responsible to a third and superior power, the opportunity to practice collusion, as well as the temptation to it, is essentially diminished.

But leaving this question for future discussion if need be, we propose to set forth briefly a few considerations which should weigh in the selection of prison Inspectors, let who will appoint them: And

I. They should be men of unquestioned *probity*. There is scarcely any public office which an ill-disposed incumbent may not prostitute to base or selfish purposes, if he is so disposed; and in the distribution of patronage, the execution of contracts and the furnishing of supplies, it would not be difficult for a prison Inspector to overstep at least the bounds of propriety. There have been not a few cases in which the official demeanor of such bodies or of individual members of them, has been made the subject of public investigation to the great discredit of those concerned, and to the manifest depravation of public morals. To put a man into such an office, whose character and standing are open to reproach, or even reasonable suspicion, is a gross dereliction of duty, and ought to subject the appointing power to severe animadversion. It should moreover be a provision in every law touching the appointment and duties of Inspectors, that they shall not be

directly or indirectly concerned or interested in any contract or negotiation connected with the prison, from which any emolument can be derived; and the use of their official position for the purposes of self-aggrandizement or other sinister end, should be punished with exemplary severity.

II. Prison Inspectors should be *intelligent* men. Not only should they be well-informed upon matters more immediately connected with their official duty, but they should have some general knowledge of the various methods of managing penal institutions. There are radical differences in the theories which prevail on this subject and in the systems founded on them. It would be very difficult for the Inspectors of a separate prison, for example, to administer its affairs discreetly and efficiently, if they were not familiar with the points in which it differs from all other prisons, with the dangers and deficiencies which have been ascribed to it, and with the methods of obviating these dangers and supplying these deficiencies, if they really appear. In the selection and distribution of occupations, and in adapting them to the habits, constitution and capacity of convicts, as well as in making the pursuit of these conducive at once to the welfare of the prisoner and to the legitimate ends of punishment, good judgment is required. The warden and other officers of the institution should see enough in their intercourse with the Inspectors to command their respect and confidence. True it is that in the minor details of prison economy, the warden and heads of departments may have most knowledge and tact, but in a comprehensive view of the principles of the institution, and of the most eligible methods of bringing them into efficient and harmonious development from day to day, the Inspectors should take the lead. The proper discipline of a prison population of three or four hundred men, combining employment, instruction, encouragement, subordination, economy, moral influence, and physical and mental improvement, with the privation and pain which constitute the penal element of the institution, is not a work for uninformed or narrow-minded men.

How often has a shrewd business man taken in charge the financial and economical interests of some of our prisons that have, year after year, made a fair report, and shown well to superficial observers, and exposed to public rebuke gross negligencies, if not outrageous frauds which the Inspectors —“good easy men,” had neither eyes to see nor ears to hear, nor capacity to understand? If we desire our prisons to answer the true ends of their

organization, we must put them under the supervision of active, intelligent men, who have an opinion and responsibility of their own.

III. Prison Inspectors should be *humane* men. Though the direct care and management of the convicts must of necessity be entrusted to the resident officers, the Inspectors, and not the resident officers, are the true representatives of the government in the administration of the discipline. In the character of those who are appointed to the immediate charge of the convicts, there should be a general guaranty that every office of humanity, that does not relax or neutralize the rigor of punishment, will be observed. It is not difficult for an officer of severe or violent temper to abuse a convict shamefully, and conceal the act from the ordinary observation of Inspectors. And hence no man of such temperament should be entrusted with the custody of prisoners. On the other hand, a weak and effeminate officer may become the tool or plaything of a convict, and lose all influence and authority over him. It is, moreover, possible that an officer—even the chief officer—of a prison may, by indolence and carelessness, inflict a negative wrong on prisoners, which is quite as intolerable and inexcusable as positive inhumanity.

A neglected prescription of the medical officer—a delay to attend to a reasonable request—a harsh repartee or an undeserved denial of confidence may be more cruel than the *douche* or the cat-o'-nine-tail—and yet how easily every thing of this character would escape the superficial observation of Inspectors, in their weekly circuit. Their humanity must not only be evinced in the discharge of their own duties, but it must prompt them to interpose every needful barrier to the positive and negative inhumanity of others. The power being all on one side, the utmost care will not always prevent its abuse.

IV. Prison Inspectors should be *hopeful* men. We need not disclaim all sympathy with those (if such there are) who take a demure look, a whining confession or a flippant utterance of religious phrases, as indications of reformed habits or reliable principles. No one who has been familiar with the course of this Journal, will suspect us of any undue leaning in that direction. But we are equally indisposed to fall in with the views of an opposite class, whose maxim is, “once a convict, always a convict,” and who instinctively distrust every profession of repentance, and of a desire to lead a different life.

We have known inspectors who, from long official intercourse with convicts, and familiar knowledge of their cunning and hypocrisy, seem to feel as if it is not safe to give heed for a moment to any thing they may say, or that may be said for them. Let them be approached in the most respectful manner, and by persons who can have no interest in misleading or deceiving them, and the moment the errand is found to be in behalf of a convict, they seem to regard the bearer of it as a little better than an accomplice, or, at least, a dupe.

It cannot be denied that well-meaning but credulous persons are oftentimes quite officious on such subjects, and through ignorance or indiscretion, are induced to urge upon Inspectors very injudicious measures. This annoyance must be borne by public functionaries as a part of the price of their “blushing honors,” and set off against the privileges and prerogatives of office. If a man is presumed to be innocent till he is proved guilty, why should not a guilty man be regarded as a hopeful subject of reforming influences, till he is proved incorrigible? What would be the condition of every member of the human family, if conviction of sin works a forfeiture of all claim to sympathy and confidence?

There is a wide difference between a seasonable encouragement of attempts to amend one’s life, and a blind confidence in professions and promises. A kind look or word at a propitious moment, in the progress of penal suffering, changes the whole influence of it. A frown or a repulse will freeze into impenetrable hardness a heart that might be melted into penitence by timely compassion and sympathy. If prisoners are treated with less tenderness by Inspectors than is shown to the wild beasts of a menagerie, we must expect them to resemble wild beasts in ferocity when they are let loose. The true light in which Inspectors should regard themselves is, as protectors of the public against danger from such a source. They are appointed to superintend a process by which the ferocious passions of a man may be subdued—his vicious inclinations changed and right moral feelings and habits implanted. If the highest and best object of penitentiary discipline is attained, he who is received under it as a tiger, is discharged from it as a lamb. The infrequency of such a transformation might not be so striking if Inspectors executed their functions in a proper spirit. Not only would their personal and official influence contribute more

directly to this result, but the whole economy and discipline of the prison under their charge would take the same direction.

V. We have only to add, that no *political* influences or considerations should be allowed weight in the appointment of prison-inspectors. We need not say that this remark has no local application, though we have no doubt that it would receive the hearty concurrence even of those who may regard the avoidance of such influences as quite impracticable. Political parties live by power and patronage. Offices of honor or emolument are the bribes that tempt men into the strife for party-supremacy, and upon a due distribution of these depends its maintenance, when it has been attained. But there are some posts which involve labor rather than honor. The emoluments of them but poorly compensate for the pains and self-denials they impose, and the duties require qualifications so peculiar and so rare, that we cannot afford to restrict the field of selection to any party. It is difficult enough to fill them properly, “with the world before us where to choose,” but the difficulty is rendered almost insuperable when a large portion of the community, and possibly an actual majority, are excluded, as out of political caste.

The choice of Prison Inspectors and School Commissioners and overseers of education and reformation should uniformly fall on those who are, on the whole, best qualified to serve, irrespective of all political relations and considerations. If we must have a new set of officers introduced into our prisons, and a new set of teachers and text-books into our schools, whenever a revolution occurs in the position of political parties, neither our prisons nor our schools will prove to be of much value. When we can trace all the ignorance and all the crime of the community to the door of one political party, we may be disposed to charge on them the burden of taking care of dolts and rogues; but so long as both are common to all political parties, it seems more wise and equitable to draw from all the best skill in the greatest force they can yield to enlighten the one and punish or (if possible) extirpate the other.

VI. There is another negative qualification of prison Inspectors—not mentioned last because we esteem it of the least consideration—and that is the absence of all morbid and whimsical philosophy about the *origin* of criminal acts. There are some people who may, with comparative harmlessness, indulge their fancy in framing theories to account for crime,

without involving criminality. They may amuse themselves by analogies between the irregularities of the skull and the proclivities to particular crimes, or by tracing a disposition to larceny, robbery and murder to some physiological mal-formation, for which the offending party is no more responsible than for his stature or complexion. Or they may discover a process by which to lay the blame of all crime on society, and show to their own satisfaction that when a foul murder is committed, “Society” should be hung as the real offender, and not the poor wretch whom (as they would say) the “state of society” has betrayed into the commission of the deed!

This is not an imaginary supposition. Our own ears have heard a man of much repute for active philanthropy, and sharing quite generously in the confidence of the community, assert in an address to a large public assembly, concerning a woman who was then under sentence for the wilful murder of her child, that she was not the blame-worthy party—“She went,” he said, “from door to door, and sought work. All objected to employing her because she was incumbered with a child. Finding this incumbrance a bar to her success, she threw it into the Schuylkill river, and who would blame her?” asked the popular orator. “Those who turned her from their doors are the guilty ones, and should now be where she is, and in her place suffer the extreme penalty of the law!”

Now, a prison Inspector needs to be free from all such fancies. He has nothing to do with the origin of crime or the blameworthiness of those who are under his inspection. All these points were settled before the convict came under his notice. All he has to do is to see that the sentence awarded by legal authority is duly executed. He has a share in the oversight of an institution established for that purpose, and his simple duty is to see to it, that the penal purpose of his confinement is fulfilled with due regard both to the dignity of the Commonwealth and the rights of the convict—for a convict has rights as well as a freeman—and the Inspectors stand between the parties, not to theorize or speculate, but to oversee the process of punishment, that it may be conformed in all respects to the provisions of law.

ART. III.—THE OLD ULCER OPENED AGAIN.

If there is any one point settled in the science of prison-discipline, it is that which is embraced in the motto of this Journal, viz., that the separation of each convict from all other convicts, is the only basis on which we can rest a reasonable hope of making him better rather than worse;—or, to give the converse of the same proposition,—the most skilful doctors of the body politic have uniformly admitted that the association of convicts is sure to breed the most pestiferous and incurable moral ulcers in their patients.

We had supposed this doctrine was so clearly established, and its fundamental importance so generally admitted, that in Pennsylvania, at least, it would rule. But either through the negligence of the proper authorities to furnish the needful accommodations, or from the overstocking of the prison with a class of persons for whose reception and oversight no proper provision is made, or from a disregard to the positive requisitions of the law, association is still allowed in some of our prisons, and the mischiefs which have always sprung from that source are re-appearing among us. The old ulcer has re-opened, and the State doctors must see to it, and check it in season, or it will become malignant and uncontrollable.

The following incidents are furnished on indisputable personal authority.

The wife of a very respectable citizen of Philadelphia contracted a habit of intemperate drinking. So resistless was the habit, that she was accustomed to pawn any thing that could be removed through the doors or windows to obtain the means of indulgence. No proper receptacle for such persons being provided, there was no alternative but that most painful one of a commitment to a prison-cell. It was hoped that a brief separation from all opportunity to gratify her appetite, would work a cure, especially when connected with the severity of the discipline.

She was committed by due process of law to the county prison, and during the brief period of her restraint, she was associated at various times with at least *three* vile malefactors, one of whom was under indictment for murder. When she left the prison and returned home, instead of being the sober, useful, reformed woman, that her wretched husband expected, she

had become familiar with the worst forms and most notorious haunts of wickedness and infamy. She was not only still intemperate, but far more degraded and hopeless in her condition than ever before.

A girl at service, in a respectable family, committed some trifling fault which irritated her employers, and induced them to commence a prosecution against her for larceny. She was charged with stealing a flannel jacket and a bonnet-ribbon.

On the trial it was proved that the former consisted of at least thirty distinct pieces of cloth which she had sewed together, supposing the fragments to be of no value. The ribbon she had taken from an old bonnet, which had lain among the rubbish of a loft for two years or more. She was found guilty, received sentence, and was committed in execution of it to the county prison. Here she became the associate of two, if not three different individuals, each of whom had been steeped in crime, and though she went into prison technically guilty, but in all good truth and justice guiltless, she came out a thorough bred mistress of iniquity!

A committing magistrate states a case which fell within his own knowledge, in which a thief and the receiver of the stolen property were tenants of the same cell! And another case is mentioned, in which a youth was associated with an old rogue, who gave him daily lessons in the various branches of criminal science!

It will be perceived, that we impute no blame to any one for the state of things here revealed. It is well known, that within a year or two last past, persons have been detained in confinement in our county prison for weeks, and even months, without any employment for mind or body, and in some instances without a change of apparel! And it was a remark of one of our judges made in a public assembly lately, that “the condition of the county prison at that time was a fair sample of what the worst prison in London was, when Howard began his reforming efforts!”

We suppose this deplorable state of things is the consequence of inadequate provision for the number and class of prisoners, whom the officers are obliged to receive. We therefore go with our appeal to the people, as represented in the legislative assembly, and earnestly invoke their attention to the subject. It cannot be needful to spread out in any new form

the evils which are inevitably consequent on the association of prisoners of any class or character, tried or untried, with each other.

If it is fancied that the opportunities of mutual corruption are less eagerly seized now, than they were in former years, or that association may be allowed with less hazard, we can give the most unqualified assurance that such fancies are vain. The evidence of the certainty of contamination from contact, was never more conclusive than now. We have this moment before us an official report of the thievish adventures of a couple of boys, who were confined together in Cold-bath-Fields prison, which serves not only to show the folly of giving such facilities for planning mischief, but an extraordinary boldness and success in its perpetration.

Having settled during the leisure moments of their imprisonment, the scheme of a professional trip to Kidderminster, “as soon as they were released they built a dog-cart, stole two dogs, and bought some hardware to vend. Whilst they were buying it in the shop, their comrades stole a dozen and a-half of brooms from the door, for which the boys paid them half-a-crown. They took with them also twenty sixpences and ten shillings in bad money, which they carried under the false floor of the cart. They first stopped at Wimbledon, where they paid a bad sixpence for some beer, and stole four silver salt-spoons from a shelf, which they disposed of to the landlord of the house in which they slept, at Kingston, for their lodging and five shillings. On the next day a coach passed them, from which one of the boys cut down a portmanteau, which turned out to be filled with papers. One of them manufactured cloth caps, and stole a great coat from a customer to supply him with materials. When they arrived at Kidderminster, they visited a carpet factory in which one of them formerly had employment, from which they stole at various times large quantities of twine and string. They were always punctual at church, where they regularly took occasion to commit thefts. In one town they succeeded in stealing three watches. At a neighboring fair one of them obtained eight purses from as many farmers, but having fallen under suspicion received a handsome ducking in a pond. On their return to London they entered a vacant house and took away a pair of decanters, a hearth-rug, and a great coat, which realised 25s.; and, after picking the pockets of some soldiers of 2l., and stealing a watch and some silver salt-cellars, they reached London

without detection, where the silver fetched 3s. 6d. an ounce, and the watches no less than 15*l.*”

A narrower policy can scarcely be conceived, than that which withholds the means of preventing crime, or counteracting the influences that provoke or promote it. We can make a very close estimate of the expense of keeping two practised rogues in separate places for a couple of years, but what it will cost to allow them to associate, is more than human wit can divine!

ART. IV.—PRISON MATTERS AT THE WEST, AND POLITICAL MANAGEMENT IN GENERAL, AFFECTING PRISONS AND PRISONERS.

We have naturally regarded, with special interest, the movements in our new States and Territories, on the subject of prisons. A system of discipline once introduced, (no matter how defective the information, or false the principles on which its adoption is based,) cannot be changed without difficulty. And hence our desire that such deductions as can be fairly made from past experience and observation, should be familiar to those who are entrusted with the responsible task of founding the penal institutions of a State, in order that the superstructure may be safe and permanent.

It was with this view that in our last number we briefly commented on the recent report to the Governor of Missouri, by a Commissioner appointed to examine the various prevailing systems of discipline. Knowing, as we do, that its positions are totally indefensible, and that those who may be persuaded to rely upon them, will be sadly misled, we felt bound to say so. We are led to suppose there is some current of political or local interest or influence, which our plain-spoken comments unfortunately crossed, for we have been favored, by some friendly hand, with a cutting from a Missouri paper, endorsing to the letter—yea, and beyond the letter—the discreditable document of the Commissioner, as “containing all the information necessary to the proper re-organization of the Penitentiary”—“replete with the most valuable and reliable amount of information”—“a valuable accession to our knowledge on the subject,” &c., &c.

Now, we have not the slightest desire to detract an indivisible particle of credit from the Missouri Commissioner, or his investigations or his report, except so far as the best interests of the people of Missouri are likely to be injuriously affected by what we truly believe to be unfounded statements and erroneous opinions. We have no doubt that if the whole subject were fairly presented to the people and calmly considered, the policy of the State

would be directly the reverse of what the Commissioner proposes; and we do not feel like seeing a powerful and highly influential community duped on such a subject, though the agent of the mischief may be unconscious of its perpetration, and may even have the most upright and honest intentions.

As we said before, so we say now, the *Rev. Mr. Hamilton's* report does not present to the Executive, the Legislature, or the public of his State, such a view of the subject to which it relates, as can possibly secure wise and beneficial legislation; and inasmuch as crime and convicts are peculiar to no latitude, soil, or climate, but are common stock all the world over, we are interested in the disposition that is made of them, and must have the liberty to speak as we think.

A horse-thief or house-breaker, who may serve his time out in a congregate State prison in Missouri, and, by association there, become an adept in his depredating vocation, is as likely to pursue it in Pennsylvania as in Missouri or in Philadelphia as in St. Louis. If he plunders a steamboat passenger on the Mississippi, he will not be very careful to inquire beforehand whether his victim is a citizen of Missouri, where he received his convict-education, or a citizen of Pennsylvania, where his education would have been on a different plan, and we trust with a different result; and hence it is that we make common cause of this penitentiary-question, and insist upon it that of all public questions it is the last that should be sucked into any of the political eddies.

We took occasion, in our last number also, to comment freely on the condition of the *New Jersey* State Prison. We were totally ignorant of all local questions, as well as of the political relations and bearings of the subject. We simply stated that while the statute positively required individual separation and interdicted convict intercourse for any purpose, and under any pretence, except in cases of sickness and by order of the physician, there were, in fact, 232 prisoners occupying 182 cells! We ventured to say that this infraction of the fundamental law of the institution should not be tolerated, but that measures should be taken without needless delay to provide against its continuance.

But behold "how great a matter a little fire kindleth!" No sooner did our gentle and peaceful suggestions find their way to *Trenton*, than they were drawn into the furnace of political strife. On one side the faulty state of the

prison is ascribed to the desire of the ruling party to keep in popular favor by spending as little money as possible! This insinuation is thrown back by the dominant party with indignation, but at the same time the omission of the Executive to recommend an enlargement of the accommodations, is vindicated on the ground, that “the finances of the State did not warrant any extraordinary expenditure, nor was the exigency of the case so great as to justify the imposition of a State tax.” Now this is matter of opinion. We think that no more urgent exigency of the kind could possibly arise, to demand prompt and efficient action at any sacrifice, than the association of convicts in a prison which is required by law to keep them separate. The minority paper retorts with no little spirit, and raises the general issue, whether the Democrats are a whit more economical than the Whigs, and concludes with the sad confession that the “leading politicians of all parties often sacrifice the public weal unnecessarily upon the popularity-seeking pretext of economy”—and here the subject closes, and the New Jersey convicts are left to pursue their system of mutual instruction, as workers of iniquity!

Perceiving from the legislative journal of one of our youngest and most thriving Western States, that steps were about to be taken towards the adoption of a general penitentiary system, we made some modest inquiries as to the probable result, and in reply received the following information: “The Commissioners by whom the plan was got up, were a set of politicians. One of them went East to get a plan, and in talking with him, I found he was loud in his condemnation of the separate system, though he admitted he had never seen a prison on that plan, and was without the slightest knowledge of its nature and operation! His own *greatest objection to it was on the ground of expense*—nor would he believe that the whole resources of the State were adequate to the building of a secure prison on the separate system for one hundred convicts.” At this point we concluded to send, by return mail, a copy of the number of our Journal for January, 1850, containing the plans and estimates for a separate prison, for the reception of one hundred prisoners; but we were estopped by the very next paragraph of our correspondent’s letter. “He would neither receive information nor listen to reason on the subject. A large wooden building was put up, and about forty convicts are in it, cutting stone for the permanent building, which, at the rate they now work, will be finished in about fifty years!”

“The office of prison Commissioner (the incumbent of which was originally appointed by the Executive) was last winter made elective on joint ballot of the Legislature. An applicant for the office succeeded, by dint of a close siege, to induce the Legislature to appoint him. But the Governor, knowing that this same man had been guilty of extravagance and corruption in the same post before, exercised the power of removal which was left to him; and when the newly elected Commissioner came to the prison with the certificate of his election in his pocket, he was met by the incumbent with a document from the Governor, removing him from the office, and appointing the old one to fill the vacancy!” “What will become of the convicts while politicians are fighting for the custody of them,” says our correspondent, “is more than we can tell.”

Now it might seem very idle in us to counsel those whose interests are thus trifled with, to take the matter into their own hands, inasmuch as those who now have it in hand, are their true and lawful representatives. But with a free press and cheap postage, we have a plain duty to discharge. As a society—we know no party sect or section—we go for wholesome laws and for a prompt, even, and rigid execution of them. We look upon crime as a public calamity. To prevent it, and to counteract the temptations and provocatives to it, is a most wise and philanthropic work, in which we gladly co-operate. Where crime is consummated, however, and the guilty party is condemned in due course of law, it is a question of deep public interest, what shall be done with him? If he can be reformed and restored to a reputable position in society, common humanity would dictate the use of all practicable measures to secure this result.

One of the most reliable aids in this process, is the modicum of self respect which may remain to the convict. The wreck is not total so long as this single piece of timber is preserved. To cherish this where it exists, or at least to avoid every thing that shall extinguish it, is of the utmost importance. Will the separation of the unhappy man from his fellow-convicts, and from the curious gaze of others, conduce to this end. We think it will, in an eminent degree, and therefore we make this a prominent feature of our plan. Will separation be better, on the whole, even if the hope of reforming the culprit is but very faint and remote? Yes; under all ordinary circumstances, and at all times, it is best for a convict to be separated from other convicts. But does not this feature of separation involve, in the prison

structure, great expense to the State? Not half so much as the absence of it. Once settle the principle, that the separation of convicts, each one from the other, is more likely to give the desired effect to their punishment than association, and the question of expense becomes very insignificant.

We are aware that if the bugbear of extraordinary expense were disposed of, it would be urged forthwith, that separation, if it were as cheap, is more hazardous to health and reason, and therefore inhuman. We deny the position, and challenge the production of a single case in which the mental powers of a convict have been destroyed or deranged, or even weakened, as *the necessary and unavoidable result of the most rigid separation*. The truth is, that statements on this subject have been made with an inconsiderateness and flippancy which would be unwarrantable in any connection, but are absolutely reprehensible here.

We do not question the soundness of the opinion of Dr. Evans and other intelligent professional men, that seclusion in a prison cell, too long continued, will be quite likely to terminate in the prostration of the human intellect. But separation from convict society is not seclusion. For the few hundred rogues with whom they are forbidden intercourse, there are millions of honest people who may have access to them. We admit farther, that separation may become seclusion by neglect, in the same way that a clean prison may become a filthy one, or a humane discipline inhuman, viz: by want of due oversight and care on the part of those who are entrusted with the government of it. And when this neglect or abuse occurs, we must not be surprised to find its legitimate effects follow.

But we shall greatly err if we attribute all the insanity in a separate prison (or indeed in any prison) to a peculiarity in its system of discipline. There will always be those who take ground against a system, no matter for what cause, and who, in their eagerness to maintain it, will press into the service not only whatever bears the semblance of truth, but many things which a little honest inquiry would show, have not even this to justify the use that is made of them. Insanity is found in a prison. There are (say) twenty victims of it. Five of the sufferers are placed there on this very account, for safe keeping. Three others were insane when committed, and were known to be so by the committing tribunals. Three have been subject, for years, to periodical returns of insanity, from which a prison-life is not likely to exempt them. Six have an hereditary tendency to insanity, which any

irksome constraint would almost necessarily develop. And three are insane from various causes “not ascertained,” as are scores in our lunatic asylums.

Suppose now one who is hostile to the system of discipline pursued in that particular prison, (whether congregate or separate,) should group all these together, and affirm that the system was evidently subversive of the reason of convicts, and ought to be abandoned forthwith—“twenty-four of our fellow-creatures,” they would say, “have already fallen a sacrifice! Who can justify the infliction of this calamity, worse than death!” and so on.

Now, without denying that imprisonment of all sorts is an unnatural state for any man to be in, and therefore likely to bring to light whatever latent proclivities to physical or mental infirmity may exist; or that there may be a neglect of hygienic laws, and a disregard of those precautions, which professional skill or common prudence may suggest for the counteraction of morbid agencies;—we confidently affirm that the separation of a convict from his fellows, has no tendency in that direction to make it an objectionable feature of prison discipline. On the contrary, we believe its legitimate influence, when administered by humane and intelligent men, (and no prison should be governed by any other,) is highly favorable to moral and intellectual and physical improvement, and more likely to answer the ends of punishment, than any other system now known.

But to return to the political nuisance. It is not only into these more imposing and expensive institutions (the patronage of which may be supposed to avail something in political struggles) that the baneful influence of party spirit intrudes itself. It was but lately that the project of a House of Refuge in a neighboring State, fell through between political parties. If we are not misinformed, one of the most useful and successful institutions for the reformation of juvenile offenders in our country, has been sadly embarrassed by the same cause, and another of like character, all completely furnished and ready for occupation, remains with closed doors till the appointing powers can settle some political squabble.

If the influence of State politics is thus baneful, we need not say how much more disastrous must be the intrusion of Church politics. We deeply regret the attempt which, we understand, has been made in some quarters to excite religious prejudices against these valuable institutions for the reformation of youthful vagrants. A volume has recently been published in

one of our northern cities, (under a fictitious title,) for the obvious purpose of engendering such prejudices, and we have understood, from a source entitled to some confidence, that any youth of the particular religious denomination, (whose interests the author espouses) who reads the book, will be likely to give trouble to the master who takes him under indenture! Now, as American citizens, we are surely all alike concerned in giving every child a good education, and in correcting as soon and as effectually as possible every vicious habit and propensity. Hence our common schools are public property, and should be not only out of sight, but out of hearing of the din of political strife or the roll of the “drum ecclesiastic.” Our institutions for the correction, reformation and punishment of those who from neglect, perverseness or incorrigible depravity become present or prospective pests of society, should be elevated above all political or sectarian connections. We cannot have a school, a refuge, or a prison for each of the legion of parties in Church and State, and hence the impolicy and unreasonableness of making existing institutions subservient to any political or sectarian end. Away with all such suicidal schemes! The ground these institutions occupy, or ought to occupy, is too sacred to be entered by such unhallowed feet.

With these views we cannot but deplore the intermingling of political interests or considerations, with the subject of prisons and prison-discipline. The only effect of their introduction is to endanger all the benevolent, public and permanent interests that ought to be regarded, and to advance those that are purely selfish and temporary. There is something utterly revolting to every human sympathy, in the idea that a hospital for poor lunatics must be delayed till some political party has strength enough to venture on the expense, or that the adoption of a system of prison-discipline, or the establishment of a House of Refuge for juvenile offenders and vagrants, should be governed by so narrow a consideration, as its tendency to promote or defeat a transient political end! Concerning all public men who entertain such views, we say, “Oh my soul! come not thou into their secret. Unto their assembly, mine honor! be not thou united.”

ART. V.—UNCERTAINTY OF CONVICTION AND PUNISHMENT.

Among the considerations which (we may suppose) exert the chief influence in prompting a man to crime, or in deterring him from it, we must regard the probability of detection and punishment, as by no means the least. Not that a man who is about to commit a crime considers very scrupulously either what measure of punishment is affixed to a certain shade of crime, or what are the chances for escaping detection; but there is a general conviction abroad in all communities on these subjects, engendered by observing from time to time the proportion of criminal acts that escape detection, and the proportion of criminal actors that evade merited punishment; and this general impression influences evil-disposed persons quite as much as any other class. Hence when the idea prevails that the chances are quite even, in favor of escaping detection, or that if detected, the chances are quite equal, that the threatened punishment may be evaded, there will be of course a proportionate relaxation of restraining influence upon criminal propensities. Let two or three children in a family succeed in a plan of disobedience in several instances, which are not detected, or let the prescribed punishment be withheld from a few offences that are clearly made out, and mischievous effects will soon become evident.

Perhaps some of our readers have never taken the trouble to survey the stages through which a criminal process must be conducted, and the embarrassments which attend it.

Besides the reluctance to prosecute, and thus expose one's-self to a very undesirable notoriety, and incur the enmity, and possibly kindle the resentments of a malevolent and reckless heart, there is, in the country-districts, an inefficiency of police arrangements, of which an accomplished rogue well knows how to take advantage.

The avenues for escape are so various, and the methods of communication (aside from telegraph lines) so uncertain and infrequent, that the most wary police force is not seldom put to its wit's end. In the country districts a young thief or burglar can obtain considerable practice in

his profession before there is stir enough to prompt to his arrest. If a hen roost or garden or orchard is robbed, the owner prefers to put up with his loss, rather than be at the trouble to ferret out the rogue, and after all be defeated. The manufacturer or trader who is defrauded by a dishonest clerk, quietly dismisses the offender, and leaves it for his next employer to find out the lad's character for himself. The course of reasoning is substantially this: The rogue will never have a chance to play his game with me again. Perhaps this disclosure of his criminal propensities may be the means of inducing him to reform; I do not wish to be the instrument of blasting his character and prospects, and bringing distress and reproach on his innocent family. Besides, I have not much faith in imprisonment as a means of reformation or discipline. So, on the whole, I will pocket my loss and send the culprit to seek his fortune—by hook or by crook, as he lists. Many a finished rogue is indebted for his proficiency in crime to this humane-looking selfishness or morbid benevolence.

It is probably this general indisposition in private individuals to incur the risk and trouble of prosecuting offences, that has led to the establishment of associations for the purpose—such as societies for the detection and prosecution of horse-thieves, counterfeiters, &c., of which there are said to be not less than five hundred in the counties of England and Wales. It has been said that the existence of such societies is a proof that the State has abdicated its functions in this respect, and that posterity will refer to them as evidence of the imperfection of our present social condition, and of the misconception on the part of the State of its primary duties.

But suppose a culprit is detected and prosecuted, what is the probability of his conviction. We have not the means to determine what it is in the United States, but out of 26,813 persons committed for trial in England in 1850, 6,238, or about one in four escaped conviction! Indeed, the number *acquitted* by the verdict of a jury in 1850, exceeded the whole number *committed* in 1810. The proportion of acquittals is probably far greater in our country.

But if conviction is secured, there is still a wide range in the measure of punishment. Even in the compact and uniform administration of English law, the punishments for the same offences vary almost indefinitely,—a verdict for manslaughter, for example, may be followed by a sentence of transportation for life or imprisonment for an hour! In our score or two of

independent sovereignties, this diversity of punishment for similar offences is much greater, and as every man is disposed to expect indulgence towards himself, the lightest punishment is expected, and a severe one is regarded as cruel and tyrannical.

The uncertainty to which we have referred, has been justly regarded as a provocation to crime.

Those who feel tempted to transgress the laws must be supposed to make some sort of calculation as to the risk they will run. If they perceive that the advantage of a criminal course is more certain than its punishment—or, at least, if it appears so to them—they will pursue the course of their inclinations. But if the punishment, however slight, were indissolubly associated with the notion of the offence, the latter would be rarely committed. If the punishment merely consisted, as Bentham says, in taking from the offender the fruits of his crime and that punishment *were certain*, no more such crimes would be committed; for no man would be so foolish as to commit them. But, as there are so many chances of escape, it is necessary to make punishments more severe than if they oftener followed the offence. No measures, therefore, can be more humane than such as tend to attach certainty of punishment to crime, because, just in proportion as that certainty is increased, the severity of the penalty may be diminished. Hence also it further appears that the due proportion and immediate connection between crimes and their punishment are points likely to have great weight with criminals; because the great body of offences being larcenies, and perpetrated from cupidity and not from passion, the thief will soon abstain from plunder, and the forger from his counterfeit art, when common sense calmly whispers that he will lose and not gain by the transaction.

The million (says a late writer) derive their impressions of legal obligations by experience of it in the persons of others, if not of themselves. They have no instruction in the principles of jurisprudence, or of ethics; no access to tuition, either oral or written, on subjects like these. Their estimate of the criminality of excessive self-indulgence is formed by its visible effects. They restrain an intemperate propensity because they see the drunkard revelling in misery, or the thief carried away in handcuffs to the

cells of a prison. Such plain matter-of-fact lessons as these are sufficiently intelligible, and their impressiveness ought not to be diluted.

In a late English Magazine it is stated that of thirty-seven persons sentenced to death in the year, eight only were executed; the sentences of the rest being commuted. In commenting on this fact, the writer says:

We are far from regretting that those thirty-seven capital sentences were not carried into effect; but we lament that some clearer distinction should not be made between homicides of different degrees of aggravation; so that, instead of charging cases as murder in which neither the jury would convict nor the Government execute the accused, that awful charge and high solemnity might be reserved for those black deeds in which the charge, and the conviction, and the execution, are almost certain to follow each other. If we ultimately retain capital punishment in our code, the limitation of the charge of murder which we have suggested will cause the notion of deliberate murder and the scaffold to be associated together in men's minds. They are not so associated at present; for, besides the chances of escaping conviction, it is notorious that condemned convicts rarely abandon hope even to the very last. Let us strive to get rid of the mockery of pronouncing solemn sentences of death in cases which are unfit for execution. The impression made by such scenes is the very reverse of what it is intended to produce. When soldiers fire over the heads of a turbulent mob, or the schoolmaster scatters threats which his rod fails to fulfil, or the law awards punishments which public opinion forbids it to execute, derision and contempt are the consequences.

We incline to the belief that the most important and effective step which can be taken at this time by the Legislature of Pennsylvania, for the improvement of her penitentiary system, is to adapt the penalty of the law more nearly to the nature of the crime—reduce the terms of imprisonment to the lowest measure that can consist with the ends of its infliction, and then increase, in the highest degree, the facilities for the prompt detection of offenders, and the certainty of their suffering the unmitigated penalty of their crimes. It is our settled conviction, that a course of legislation which

should virtually secure these results, would at once reduce the number and boldness of criminals at least fifty per cent—probably much more.

We urge this reform in the provisions and administration of our penal laws as eminently *humane*, for to whatever degree we reduce the amount of crime by increasing the certainty of conviction and punishment, to the same degree we promote the safety and happiness of the community.

For reasons somewhat analogous, we would also urge the propriety of bringing the utterance and the execution of the sentence of the law into the closest proximity in point of time, which can consist with propriety and humanity. We do not mean by this that the convict should be hurried from the dock to the gibbet or the cell, as if public justice were greedy to assert its sanctions; but simply, that no such length of time should intervene between conviction and punishment *as shall allow their natural relation to each other to be lost sight of, or but dimly seen*. In the divine government, which knows no limit of time or space, sentence against an evil work is not rendered uncertain by delay, and yet we have the highest warrant for saying that “because it is not executed speedily, the hearts of the sons of men are fully set in them to do evil.”

A foul and terrific murder has been committed—public feeling is excited to a high degree—every agency in the power of the government is put in requisition to detect the perpetrator and bring him to justice—no pains, stratagem or expense are spared to accomplish this end—perchance two or three false arrests are made—the ardor of pursuit is abated—and some new outrage or calamity catches the eye, and diverts the attention of the public. By and by a new direction is given to the original inquiry by some incidental circumstances, or it may be the result of a circuitous process of the police officers. The monster is discovered and arrested. But the horror with which the crime filled the public mind when it was first brought to light, has past away, and can by no means be re-excited. The victim of malice or wanton cruelty is six feet under ground. Sympathies with a surviving family have had their time and place, and are dismissed; and now the perpetrator of the bloody deed is arraigned.

Is there not a strong feeling of reluctance to have the tragical scene all re-enacted upon the theatre of a court room? Do not the sympathies, which a little while since followed the murdered man to the grave and his family

and friends to their various homes, now strangely find their way into the prisoner's dock, and plead for a suspension of the sword of justice? We would not favor the least relaxation of those rules of proceeding in criminal prosecutions, by which the life, liberty and reputation of the accused are protected. Let nothing be presumed against him. Let every thing be presumed in his favor till all such presumption is forbidden by conclusive evidence of guilt. The tables should then be turned. There are now new claims to be met. The community has patiently awaited the tardy movements of the constituted authorities. While it was uncertain who had forfeited the privileges of a citizen and, by a violation of the law, incurred its just penalty, the sword of justice was held in suspense. But now, the guilt being fixed and the perpetrator of the wrong being singled out, there should be heard among honest and law-abiding men but one voice—LET IT FALL!

Attempts to avert the blow are not in aid, but in delay of justice. Exceptions to the opinion of the court—motions in arrest of judgment, or for a new trial, are in most instances, regarded by the popular mind as so many ingenious attempts of the sworn ministers of the law, to open loopholes of escape for the guilty. When a man stands before the country convicted, in due course of law, of a wilful and deliberate murder, and when public sentiment is so strong against him, that nothing but the fear or love of the powers that be, protects the culprit from a summary execution by mob-violence; it *seems* like trifling (and to the mass of men it is trifling) to make the omission of the dot over an i, or the interlineation of a word in the record, or the omission to ask the convict "if he had any thing to say why sentence should not be pronounced against him," or any similar clerical error or neglect, a reason for still further delay, or the basis of an argument for annulling the whole proceeding.

We shall not be misunderstood. We are not ignorant of the necessity of forms, nor of the wide door which is opened for abuses by the neglect of them. We would be the last to deprive a culprit of a single right or privilege which the law allows him. But he is not the only party in interest. Honest men and law-abiding citizens have rights and privileges which are also to be respected. When professional ingenuity is tasked to discover some shift or subterfuge by which the results of a conviction can be avoided, and the ends of public justice defeated; the impression made on the public mind is, that the criminal is defending himself against the vindictive aim of the

government. Instead of appearing like a thief who is convicted, and is dodging every way to elude his pursuers; he is looked upon as a stag hunted by hounds, and panting in the last effort to escape their devouring gripe. Our doctrine is, that the laws should be so framed and so executed, that their ministers should always be a terror to evil doers, and a praise to them that do well. As it is now, the tendency of many of the most solemn public proceedings under them, is to bring them and their administrators into contempt and derision.

ART. VI.—RECENT OCCURRENCES IN PHILADELPHIA.

The chief purpose we have in view in transferring to our pages (without, however, making ourselves at all responsible for the accuracy of the details,) the following article from a recent New York paper, is to use it as a theme for a few observations on recent occurrences in our own city.

CRIME IN NEW YORK CITY.—Fitzgerald will be hung at the Tombs to-day for shooting his wife. Neary, sentenced to the same fate, for a similar offence, is respited one week, in order that the Sheriff's Jury may determine whether he has lost his reason. If the latter execution takes place, it will make seven in this city within the last year! In all England and Wales the whole number of executions during the year 1852, as appears by a Parliamentary report, was only nine! The population of this city is six hundred thousand; the population of England and Wales is eighteen millions. In other words, New York, with a population of only one-thirtieth as large as England and Wales, hangs seven-ninths as many in the same space of time!

The little we fail in point of number, however, is more than made up in the atrocity of the offences. Of the nine hung in England one murdered his wife, one her husband, one her mother-in-law, one his employer, who had dismissed him, one his uncle, one a stranger on the highway, one his own illegitimate child, one the illegitimate child of his wife, one the illegitimate child of his paramour; but of our seven, three murdered their wives—namely, Grunzig by poison, Fitzgerald by shooting, Neary by beating the brains out with a mallet and chisel; Stookey murdered a negro, Clark murdered a police man, and Saul and Howlett a watchman. Three of the English murders were of infants, but all of the New York murders were of full grown persons, three of whom sustained the most sacred of all relations to those who deprived them of life. But, in truth, New York of right has the precedence of all England and Wales on this score even in regard to number. Doyle, who murdered the woman with

whom he boarded in Pearl street, was sentenced to be hung, and ought to have been hung, and would have been hung in England, but was sent to the State prison for life. Sullivan, who killed the man in Cliff street who endeavored to prevent his beating his wife, was found guilty of murder, and ought to have been hung, and would have been hung in England, but was sent to the State prison for life. Johnson, one of the condemned with Saul and Howlett, was sent to the State prison for life. There are now at the Tombs ten men awaiting trial for murder, one of whom, Carnell, the fiendish Dey street murderer, has already been convicted once, and is now awaiting a second trial. The whole number of arrests in this city for homicide within the last year, has been, as near as we can ascertain, about thirty-five!

The whole number of arrests in this city during the year 1852, was about 35,000; the whole number of commitments in England and Wales was 27,510. The whole number of arrests for offences committed upon the person in New York in 1852, was 5,468; in England and Wales the whole number of commitments for the same class of offences during the same period there has been about two thousand. In England last year there were 13 convictions for burglary: in New York 146 arrests for the same offence. During the last seven years there were 66 convictions for this offence: in New York during the same period over 1000 arrests. But this does not furnish the worst aspect of the case. The disparity between England and this city, is yearly becoming greater. While crime is increasing there slightly, it is here increasing with fearful rapidity. The whole number of convictions for murder in England in 1846, was 13; the whole number of arrests in New York for murder for the nine months preceding May 1, 1846, was 10. In England the convictions of 1847 were 19; in New York, during the year ending May 1, 1847, the arrests were 18. In 1849 the convictions in England were 19; in New York the arrests for the year ending November 1, were 13. In 1850 the convictions in England were 11; in New York during the fifteen months ending with the last of December, 1850, they were 16. In 1851 the English convictions were 16; the New York arrests 36. In 1852 the English convictions were 16; the New York arrests were 30. The total number of commitments for all kinds of offences

in England and Wales during the last seven years, was 194,424; the total number of arrests in New York during the same period was over 200,000! We are not able to make an exact comparison between the absolute number of crimes perpetrated in England and in New York city, since the Parliamentary tables before us relate only to commitments in the case of offences generally, and to convictions in cases of murder, whereas our police tables only give the number of arrests. Of course many are arrested who are not committed or bound over for trial, but their number is by no means so great as to destroy the remarkable significance of the figures we have put in connection.

Now, what are the causes of the remarkable difference between this city and England in extent of crime? England has its immense cities, abounding with ignorant and vicious classes of population—it has its London, its Liverpool, its Birmingham, its Manchester and its Leeds, and yet this single city of New York, if we may trust official tables, exceeds not only each of them in crime, but all put together! It cannot be ascribed to any peculiar character of our people, distinct from theirs—for it is notorious that the greater part of our criminality springs from the foreign element of our population. Of the seven murderers above specified, for instance, six of them were foreigners—one being a German, three Irish, one English, and one a Nova Scotian; and the seventh, though born in this city, was of Irish parentage. The same people that chiefly commit the crime here, are found in vast numbers in every English city. Why, then, the difference in the extent of that crime? This question does not admit of either a ready or a brief answer. The causes which produce this result are various and complex, some of which we may consider hereafter. The most important of them are, doubtless, the comparative inefficiency of our police in preventing crime, the comparative uncertainty of our courts in punishing crime, the neglect of our young vagrant population, and the vast number of disorderly grogeries, licensed and unlicensed, that have all the while, without restraint, been stimulating the passions and bad propensities of all the lower classes of our population. It is time that these matters should be seriously and earnestly looked at and cared for. Our streams of crime are increasing into torrents, and they

threaten to overwhelm us. The facts we have given, startling as they are, cannot be denied. Official documents prove them. Read and ponder!

It will be observed that four distinct causes are here assigned for the difference in the extent of crime in New York and in English cities. Of them all, we have had something to say at various times. The first we discussed at some length in a former number,^[2] and pointed out a few of the disadvantages to which the best police system must be subject under institutions like ours. Upon the second of these alleged causes we had prepared the article in our present number before seeing the observations of the New York paper. Scarcely a number of our Journal has been without some call to more concern for our vagrant juvenile population. So that our readers will not find any thing startling in the revolting statement we have copied, unless it be the striking proximity of cause and effect.

^[2] See Journal for January, 1853, Art. III.

So far from feeling surprise at the frequency and boldness of crime, we rather wonder that the few checks which are imposed on it, maintain their power. No one can carefully note the manner in which crime and its perpetrators are treated, without perceiving how much is done to provoke and countenance it, in comparison with what is done to punish and suppress it. We have neither space nor inclination to enlarge on such a subject, but it is due to the cause of humanity and the welfare of society, that the plague-spots in the body politic should be plainly pointed out.

Not long since two men were together in a drinking house. A. is influenced with liquor sold to him in violation of law. He attempts to provoke a quarrel with B. B. leaves the house, and A. follows him with taunts and threats. B. is peaceable, says he does not want to quarrel, and retreats to a distance from the house. A. pursues him and deliberately, without the slightest provocation, and in spite of B.'s attempts to avoid a quarrel, stabs him to the heart! The dead man is buried—the murderer arrested and tried, and the jury find him guilty of murder in the second degree, and, moreover, recommend him to mercy! Why did he try to provoke a quarrel before he executed his murderous purpose? Why, because he had ascertained, by watching the proceedings of the courts, that the

quarrel, however picked, would mitigate the offence. “Stabbing a man in a fight, gets only five years in the penitentiary.” This was his own statement.

A laborer is returning home from his daily toil on Saturday night—peaceable, if not sober—and within a few steps of his dwelling, is assaulted and murdered. After one or two false pursuits, two young men are arrested—tried and convicted of murder in the first degree. The most revolting details of the steps which immediately preceded the perpetration of the first deed are spread out before the public in the daily papers, and show a recklessness and indefinite malice which makes one’s blood run cold. Not a shadow of doubt rests on the minds of the jury. The verdict is followed by the sentence, and the time is fixed for their execution. But no—hundreds and thousands of citizens unite to arrest the arm of justice, and to screen these desperate felons from the just reward of their deeds. Can any one fail to see the influence of such a proceeding, in relaxing the authority of the government, and bringing the highest sanctions of law into popular contempt?

But another case, and a still more flagrant one, may be cited. It presents various points of interest involved in our present inquiry.

It is said that Arthur Spring, when a young man, was guilty of robbing some orphan children, by forcibly opening a trunk, in which they had a little treasure, and stealing it. He was arrested, but escaped condemnation through the influence of a relation, who held a commission of the peace, and sat upon the trial! This probably emboldened him in his career. It is needless, and would be offensive, to spread on our pages a history of his infamous deeds. Suffice it to say, that he was convicted of a penitentiary offence in this city some years since, and pardoned within 48 hours after being committed! Again, he was convicted in New York, and again pardoned!

Then follow two, if not three, successive wilful, unprovoked, deliberate murders committed with a degree of boldness and ferocity almost unprecedented. He is tried, convicted and sentenced to suffer death.

And now the scene changes. The offence of the culprit is too rank to admit of any interposition for his rescue—no call for executive clemency would be tolerated in a case of such enormous atrocity. The death-warrant is issued, and the day for the execution is fixed. Most wisely and humanely,

and in obedience to a reformed public sentiment, the law forbids this extreme penalty to be inflicted, as it once was, in presence of a gazing throng. What are its provisions?

10 April, 1834.—An Act to abolish public executions.

§ 1. Whenever hereafter any person shall be condemned to suffer death by hanging for any crime of which he or she shall have been convicted, the said punishment shall be inflicted on him or her within the wall or yard of the gaol of the county in which he or she shall have been convicted; and it shall be the duty of the Sheriff or Coroner of said county to attend, and be present at such execution, to which he shall invite the presence of a physician, the attorney general, or deputy attorney general of the county, and twelve reputable citizens, who shall be selected by the Sheriff: and the said Sheriff shall, at the request of the criminal, permit such ministers of the gospel, not exceeding two, as he or she may name, and any of his or her immediate relatives, to attend and be present at such execution, together with such officers of the prison, and such of the Sheriff's deputies as the said Sheriff or Coroner in his discretion may think it expedient to have present; and it shall be only permitted to the persons above designated to witness the said execution: Provided, that no person under age shall be permitted, on any account, to witness the same.

§ 2. After the execution, the said Sheriff or Coroner shall make oath or affirmation, in writing, that he proceeded to execute the said criminal within the walls or yard aforesaid, at the time designated by the death-warrant of the Governor, and the same shall be filed in the office of the Clerk of the Court of Oyer and Terminer of the aforesaid county, and a copy thereof published in two or more newspapers, one of which at least shall be printed in the county where the execution took place.

Language could not make the design of the Legislature more intelligible. The walls of the prison yard effectually protect the enclosed area from being overlooked or entered without license; and it is within these walls that the extreme penalty of the law is to be inflicted. The Sheriff or Coroner to whom the warrant is addressed, is alone *required* to be present. He is to

invite the presence of one of the principal prosecuting officers of the government, and only one of them. He is also to *invite* one physician and twelve reputable citizens of the county selected by himself, for the purpose. He is *authorized* to admit such ministers of the gospel as the culprit may desire and name, *but never more than two*, and also any of his immediate relatives, (if it were possible they could desire to witness such a scene). Besides these, no persons can be present (but in direct violation of law) except such officers of the prison, and such of his own deputies as he, the Sheriff, in his discretion may think it expedient to have present. And lest this permissive authority should be unduly stretched, it is restricted by a positive prohibition, that no other person shall witness the execution, and still farther to guard against any injurious effects from the scene, it is provided that no physician or minister, or relative, or officer of the prison, or other party, shall be admitted, if not twenty-one years of age or upwards.

The second section evidently contemplates such a record of the proceeding as shall be authentic and permanent in the absence of all personal or oral testimony—as for instance, if the Sheriff executed the warrant alone, none of the persons invited being in attendance, nor any minister or relative, nor any of the prison officers, or the Sheriff’s deputies, which, under the provision of the first section, was a supposable event. Now we maintain, that any violation of the letter or spirit of this law on the occasion of the execution of *Arthur Spring*, was, in the first place, in derogation of the dignity of the government—and in the second place, well fitted to bring all law into popular contempt, and to give encouragement to the perverse and disobedient to persist in their evil courses.

We avail ourselves of the columns of a highly respectable religious Journal published in Philadelphia, for a statement of the facts in respect to this particular case, rather than rely on our own information:

The recent execution of an atrocious murderer was witnessed, as all the reporters tell us, by a thousand persons. By what authority such a concourse could have been assembled, we know not: but of this there can be no doubt, it could have been only by a culpable evasion of the law. In the olden time, when any body under the impulse of curiosity or any better or worse motive, could at will form one of the crowd at an execution, the spectators were perhaps some four or five thousand in number: and now, even under the

restrictions of the new law, the amateurs of the gallows—men who get the privilege of the ghastly sight by help of some official weakness or abuse—are reckoned a thousand. And such is the morbid curiosity which the law was meant to chasten and thwart, that a Grand Jury the other day is reported to have actually presented themselves in Court to inquire whether they were not officially privileged to attend the execution. We should have been glad if the dry negative which the Judge is reported to have given them had risen to the tone of rebuke. That a body of citizens charged with such high and dignified responsibilities as those of the Grand Jury should have so far forgotten their official, if not personal character, as to make this indecent application, has, we believe, excited but one sentiment—that of disgust—in this community.

It would be unjust to leave our readers under the impression that this was an occurrence without precedent. If we do not greatly mistake, quite as disgraceful a violation of the law occurred when Langfeldt was executed. And we do not hesitate to say that, whether they mean it or not, those who have permitted or countenanced these palpable violations of law in the very act of executing its stern decree, have done quite as much to defeat as to enforce its sanctions.

But all the revolting story in Spring's case is not yet told, and we return to our former authority for its shameful details:

The lifeless body of the vile criminal was given up to the anatomist. Of this fact alone no one need complain. But a community has a right to ask that anatomy should do its hideous work with some reserve—and instead of parading its loathsome details, should cast a veil over them. The execution was witnessed by a thousand, and the dissection by (as we may infer) some hundreds. An elaborate newspaper report informs us that the post mortem examination was made “in the anatomical theatre of the Philadelphia College of Medicine, by Professor James M'Clintock, in the presence of a large audience of medical students, physicians, members of the press and others.” According to the report, it must have been a very theatrical sort of exhibition—the follies of phrenology contributing largely to enliven it. Science may have gained something by such a piece of work, and by the lecture that

accompanied it: it is possible, we suppose, that the knowledge of the theory and practice of hanging may have been a little increased, and perhaps some small addition made to the science of anatomy: but when we are told by the reporter that the Professor who made the dissection was “pleasantly facetious,” in his performance, we must say, that if science gained any thing, it was at the expense of human feeling and of decency. *Pleasantry!—facetiousness!* What an occasion for the exercise of such powers! We would fain hope that the reporter used the words inconsiderately and inappropriately, and that he must have done the Professor injustice: but if not—if the man of science, standing over the ghastly carcass of the broken-necked criminal, from which an undying soul had so lately passed forth so fearfully, did accompany his explorations with any sort of facetiousness; and if his “large audience” did at all sympathize with such ill-placed levity, then—not trusting ourselves to picture what sort of a scene it was—we will only say that thus conducted, the anatomical theatre is as brutalizing and demoralizing as the public hanging ground itself. When Hogarth, with all his wondrous powers of commingling the grotesque and the ghastly, carried the vicious apprentice on to the last scene in the dissecting room, he did not venture, if we remember rightly, to picture there a facetious anatomist.

If we had space we should be disposed to comment somewhat at length on several points here presented, and others which have come to our knowledge from parties who were present, but we can only advert for a moment to the indirect influence of the published report of the examination.

It would seem that the physical *structure* of the murderer was such as to indicate the ferocious and brutal disposition which he manifested. With such a development of brain, muscles, &c., it would have been quite a perplexing problem to scientific men, had he been less tender of the lives of his fellow-creatures. Now it occurred to us, as philanthropists, that we might perhaps do away with a great deal of crime and suffering, and almost the whole expense of the police, of criminal courts, prisons, &c., by a simple process like the following. Let a commission of discerning and judicious men of science be appointed in every county or large town, (like vaccine districts) who shall be required once a month to examine all

persons within a given district, with a view to determine their developments. As soon as there is a perceptible tendency to thieving, burglary, fraud, robbery, rape, murder, or other criminal course, let it be duly recorded; and without waiting for the actual consummation of the deed, which is really the expensive feature of it, let the development suffice to put the public on its guard, and subject the party in whose unfortunate brain it is detected, to the same pains and penalties which he or she would suffer, were it to be allowed full expansion. A moment's reflection will satisfy any one of the economy and efficiency of this plan.

The whole course of legislation, adjudication and punishment would thus be resolved into a plain matter of professional science; and all questions about the sources and preventives of crime would be brought to the surface of the cranium, and there be settled by square and compass!

Miscellaneous.

INDISCRIMINATE ALMSGIVING.—Great is the glory of benevolence; it outshines that of wealth and war. Hence, the wide and lasting fame of John Howard. All men revere his memory. The story of his life thrills the soul. None can read it without learning to admire the beauties of his goodness, and the moral gorgeousness of his charity. We enshrine his name in our heart of hearts. But John Howard was not benevolent only—he was wise; his insight into remedies was consummate. He sought to understand the sources of crime, and the character of criminals. He was prudent, methodical, firm; his wisdom and his love went hand in hand. Both his spirit and his understanding were consecrated to the great work which formed his mission.

Many wish to do good; they long to repress crime; they wish to diminish human sorrow; the poor look to them for help. Ready are their hearts to pity and their hands to bestow an alms. But they do not give *wisely*. Like Howard, they are full of compassion; unlike him, they have no system, no principle of action, no wise mode of dealing with the criminal, the ignorant, and the poor. They give profusely; they do not give thoughtfully; the fruits of their deeds are therefore corrupt and full of evil.

Let us explain. To bestow money, soup, blankets, and Bibles, is an easy duty; plenty of people will come for them; the demand is always equal to the supply. Society abounds with mean, lazy, drunken persons who do not wish to sweat and toil. There are men redolent of strong drink, tobacco, and filth, who “take the liberty of waiting upon your honor” to narrate tales of woe. They cannot get work; they owe five weeks rent; their wives are ill; their children have no bread. They are “poor fellows who wouldn’t come, but hunger is a sharp thorn,” and so on. There are women who knock at the door, and send in little, cramped, flattering, lying notes. Their husbands are in the hospital; they are going to be confined of their sixth child; they have four children ill of the small-pox; they have nothing to eat; they smell of whiskey, but that is of no consequence. A leetle drop they say, is a comfort, and they don’t get drunk.

There are little girls who call upon us to say that their father fell from a scaffold, and greatly needs some money to get him a morsel of fresh meat—the said father being then waiting round the corner for the anticipated gift. There are boys who follow us from square to square with a wretched whine, and telling a score of details about their daily sufferings, but taking care not to whisper a word of the short pipe, the smoking pudding, the pot of ale, and the visit to the Circus or Theatre, with which they solace themselves after the public labors and sufferings of the day. And there are the dramatic beggars—men who crouch behind a scroll, on which is written STARVATION; the pathetic beggars—women who sit on door-steps, with cold tears rolling down their cheeks; the rural beggars—picturesque beggars—and all other kinds of beggars.

Who is to be held responsible for this army of beggars? To a large extent, (we reply) careless alms-givers. People who give to any and to all that ask, create pauperism. They bribe the feeble and the wicked to adopt the disgraceful profession of a mendicant. In saying this we do not depreciate, nor do we seek to hinder that charity which God loveth. To bestow an alms is often a duty; when well bestowed it is pleasing to God. Not so with almsgiving as it is. That is a moral blight; it has produced a generation of liars, thieves, drunkards, and prostitutes; it is a demon in the garb of an angel; idleness, falsehood, dirt, ignorance, and crime, are its foul results.

We appeal to facts and witnesses. Mendicants, paupers, and thieves abound; they are of all nations. We have them from Ireland, from Africa, from India, and from amongst ourselves. They are of all ages; old and young, parents and children come before us. They are of all kinds; some in silk, some in broad-cloth, some in fustian, and some in rags. Their sores are artificial; their tales are got up; their lives are most unholy shams.

The evil influence of indiscriminate almsgiving is not confined to our own country. The continent is also the sphere of their operations.

“It happened that on two occasions, (says *Fraser’s Magazine*,) at the interval of about eighteen months, we travelled from Paris to Boulogne, and stopped for a few minutes at a village on the road, of which we have now forgotten the name. An Englishwoman, in an agony of supplication, and with her cheeks wet with tears, rushed to the window of the diligence, and inquired whether there was any

Englishman inside. We owned the soft impeachment, when, with an earnestness of manner which would have done honor to an accomplished actress, she stated that her husband, a week before, had broken his leg, and was now lying dangerously ill in the village. Of course, it was impossible to verify her statement, but, we confess to our shame, that we received it without hesitation, and dropped into her hand a five-franc piece. At the same town, eighteen months afterwards, the same woman, with the self-same story, appeared at the window with the old inquiry. We threw ourselves forward with the sudden impulse of surprise; the trickstress recognised us, and fled in confusion.”

Time would fail us in attempting a complete exposition of the manifold evils of this system, and we will therefore confine ourselves to its influence on the education of destitute children. Now it is plain that whatever depraves the parent injures the child. Make the parents indolent, false, and drunken by reckless benevolence, or by anything else, and you peril the future welfare of their offspring. What do they care about the ignorance, the rags, and filthy aspect of their little ones? Ignorance will excite compassion—rags will induce all kind people to bestow shoes, linen, bonnets, and gowns. Dirt draws money—vermin bear interest. These—brutish ignorance, fluttering rags, uncombed hair, shoeless feet, an unwashed body, a dramatic cast of the eye, and a voice carefully attuned to utter the true whine—“wot tells upon old gemmen and wimmen,” are the stock-in-trade and fixtures of the mendicant; take these away, and you rob him of his capital. What does he or his children want with Ragged Schools? They would bring him no money by going there, therefore he will not send them.

In all such cases as these, and in a thousand more, the children, though awfully ignorant, are wilfully kept from school. They make money; they bring beef to the pot, tobacco to the pipe, cards to the fingers, and rum to the lips. Send them to church! Not so. “Sunday is our best day.” Send them to school! “We cannot afford that,” said a father. “How much will you pay us?” said a drunken mother. Send them to work! “Bedad! we knows better than that!” said a son of —, we shall not say where. Nay, so profitable is begging that children are hired for the purpose. Hence, the difficulty which many a missionary experiences when he tries to get the right sort of children for the Ragged or Mission School.

“A spirit-dealer in High street informs me that he draws £10 more on the pay days of the Glasgow poor than on any other days of the week. Another spirit-dealer says that the paupers regularly come to him and spend in drink what they receive. I asked him how he knew they were paupers? He replied, that they made no secret of it; he heard them talk about what they got, and how long they had to wait for it. They go in hundreds from the long closes in High street. An inspector informs me, that he observed a lame pauper, not two hours after he had received 8s., carried to the police office drunk on a barrow. He also found a pauper, aged eighty years, so drunk that she was not able to rise from her chair, and singing, ‘The world is bound to maintain me, sing yo, sing yo, sing yo,’ to some other jovial paupers who joined in her revels. He frequently finds paupers drunk on their beds after they have received their aliment; and having spent all in a single night, they live in a starving condition, *or beg, or steal*, until next pay-day comes round.... Widows, left with children under ten years of age, receive a great deal of out-door relief from this Board, to bring them up. A large proportion of these are dissipated characters, who drink the money which is intended for the benefit of their children, *whom they send out to beg, and thus grow up uneducated*, and become, if they survive the bad treatment to which they are subjected, pests to society, like their mothers.”

Mr. Bishop, of the Liverpool Domestic Mission Society, in his annual report for 1852, speaks as follows:—

“As long as people will give to little children in the streets and to beggars at their doors, without the trouble of inquiring into their character and circumstances, so long shall we have a continual supply of juvenile criminals, and numbers of idle, worthless people, living on their wits, to the injury of honest industry, and the perversion of true views of charity. The polite heaps of rags that accost us at our doors and in the streets are, for the most part, tricksters in disguise. One little merry fellow, who has followed the begging trade for dissolute parents ever since I have been in Liverpool, and is particularly successful with the softer sex, will, sometimes, knowing that I am up to the secrets of his business, show me what he calls ‘the crying face,’ which, when necessary, he

puts on to the ladies. He is a clever, sharp boy, but I have in vain endeavoured to reclaim him from his Arab life. It is far too profitable to his parents, and has become, I fear, too pleasant to himself. But to show the ill consequences of encouraging such lads—I was lately remonstrating with a man who lives near this family, because of an ungrateful and dishonest trick he had attempted to pass on a benevolent lady, when he said to me, as if the wholesale trickery of his neighbors justified his smaller practices—‘Why, there’s little Ned,’ referring to the boy in question, ‘he brings home every day more than any labouring man can earn, and sure we are worse off than they.’”

“The charity of the metropolis is too indiscriminate, says a London coroner, and thus the deserving poor are unheeded, and drunken, reckless characters are well provided for, either by private munificence or work-house relief, which enables them to lead an idle merry life. The money they get is squandered in drink, and at night for a few pence they obtain a bed in a wretched stinking hovel, where all ages, all sexes, and all diseases are crowded together, forming so many plague factories and disease depots. So long as a vagrant can live without working, he will do so. So convinced am I of the consequence of the evil that I have ceased to be a vice-president to the Soup Kitchen. In fact, begging has become a regular trade. A few years ago, one of the fellows who followed that avocation was examined before a committee of the House of Commons, and stated that he had travelled over the kingdom for nine years as a beggar; that he was treated as a gentleman in prison, but most disgracefully in workhouses, especially in Lambeth, where he had to work before breakfast; that a slouched hat and smock-frock, with a bundle of herbs in his hand, formed the best garb for a London beggar; and that there were not ten out of one hundred vagrants worthy of relief. Such (continued the coroner) are the disclosures made by him regarding the begging trade. I am, however, happy that the press has taken up the subject, and trust that it will not cease its efforts until this monster evil is completely put down, and thus prevent charitable institutions being abused, and their funds wasted, upon lazy worthless characters. The jury

expressed their fullest concurrence with the opinions and observations of the coroner.”

The opinions of such witnesses more than corroborate our statements, and the force of these opinions will not, we trust, be unfelt by our readers. They may ask, what should be done when application is made to them for pecuniary relief? We would suggest—

1. That no money be given to street beggars without inquiry into their cases and an unexpected visit to their abodes.

2. That persons who are acquainted with the tricks of the vagrant class, such as tradesmen, City Missionaries, Ragged School teachers, and others, be applied to on such occasions.

3. That societies whose business it is to afford systematic and well-timed relief in cases of distress, such as the Union Benevolent Society, be more liberally supported, and cases sent to them instead of being personally attended to. The adoption of these or similar rules would tend much to prevent imposture, to add scores of children to our Mission Schools, to increase our power of doing real good, and to rid us ere long of the nuisance and abominable annoyance in our streets of “confirmed vagrants and sturdy beggars.”

SHOOTING WITH RED PAINT.—A work has lately been published, called “Notes and Narratives of a Six Years’ Mission, principally among the Dens of London.” By R. W. Vanderkiste.

The title gives a correct idea of the contents of this volume. The writer, for six years, was an agent of the London City Mission, and labored in one of the most unhealthy and morally depraved localities of that great metropolis, known as the “Cow Cross District.”

The volume presents an interesting exhibition of what can be effected, under God, by an earnest and self-sacrificing man. The most romantic narratives are occasionally introduced. The following is one of them:

“An Old Bow Street officer, who yet lives in the neighborhood, has detailed strange and terrible scenes to me. One I will give as nearly as possible in his own words, omitting some unpleasant

vulgarity: 'One of my mates come to me, as near as I can guess, it might be two o'clock in the afternoon. Says he, 'P——, you must come up to the office directly.' It was in Hatton Garden then, sir, close by. 'What for?' says I. 'Oh!' says he, 'there's the Irish murdering one another on Saffron Hill, and the place is blocked up with the mobs.' So I takes my staff, and my cutlass, and my pistols, and away I went up to the office. It wasn't a minute's walk scarce, you know. Well, sir, there they was, breaking one another's limbs on Saffron Hill, hundreds of Irish with great sticks and pokers; ever so many had been taken off to the hospitals wounded; they was so spiteful, the shopkeepers put up their shutters, and the place was full of Irish, cutting and slashing like mad, and coming from all parts, taking sides and fighting one against another. Well, sir, there was only six of us, and we found we must turn out. 'My lads,' said the head constable—and he didn't like it at all, he didn't—says he, 'this is a queer job, but go we must!' Well, sir, away we went, but it warnt no use at all; the mob didn't mind our cutlasses a bit; great big fellows come up to us with their pokers, and we warnt in no pleasant situation in no respect. Well, I saw there'd be murder very shortly, and suddenly a thought struck me, and away I went round the corner—may be you knows the shop—it was a shop where they sold almost every thing then. Well, I knocked, but they were afraid to open the door. Says I, 'It's me, Mrs. ——, and do let me in;' so they let me in. Says I, 'Let me have some red paint of some sort immediately;' so they gave me some rouge or carmine, I don't know which it was. So I took out my pistols and put in a charge of powder, then some paper, then I wetted a lot of this paint and put it in, and some paper loose over it, and off I went. Well, there was my mates hemmed in, but no lives lost, thank God; they was fighting away; well, a great chap come up to me with a poker or a fender a-fighting with, so I outs with a pistol, and, says I, 'Stand back!' and presents it at him. Well, he didn't stand back, so I fired at him. Well, sir, you may depend on it, (I shall never forget it,) the force of the powder and wadding knocked him right off his legs. It caught him in the forehead, and the red paint made his face look just as if it was all covered with blood. They made sure he was a dead man, and some carried him off to St. Bartholomew's Hospital, and the mob

got frightened at us and dispersed. They didn't know whose turn might come next. Well, sir, when they came to examine my man, at the hospital, and washed his face, it set 'em a wondering, for they found there wasn't no wound at all. The man was partly stunned, and soon walked home. Well, sir, the story got wind, and them Irish was so pleased with it afterwards, (when they come to their proper reason and sobriety, they could see it had perhaps prevented real murder, for they was getting terrible spiteful when I let fly)—they was so pleased many of 'em would have done anything for me afterwards. The housekeepers in the neighborhood, too, made us a handsome present, and I was told about that red paint job a long while afterwards, you may depend on it, sir.'”

If this hint could be taken by our war-makers, it might save a large portion of the miseries which past generations have endured, and which ours may not otherwise escape.

NEW WORK ON THE EFFECTS OF SEPARATE CONFINEMENT.—We regret that want of space forbids us to insert in the present number of our Journal a notice of a volume of 300 pages, published a few weeks since by Longman & Co., London, entitled, “*Results of the System of Separate Confinement, as administered at the Pentonville Prison. By John Burt, B. A., Assistant Chaplain, formerly Chaplain to the Hanwell Lunatic Asylum.*” The positions taken in this volume, and the facts and arguments by which they are maintained, are such as the opponents of separation will find it difficult to controvert or rebut.

Suffice it for the present to say, that in the author's view every departure from the principle of rigid, individual separation in that prison, has been attended with evil consequences.

THE ELIZABETH FRY REFUGE—Instituted in London for affording a Temporary Asylum for Destitute Females on their release from the

Metropolitan and other Gaols, their moral and religious improvement, and the arranging for their future destination and welfare, was founded as a memorial to the late Mrs. Elizabeth Fry. It has been in operation three years, and has admitted above 200 cases, varying in ages from 12 to 35, most of whom have been either provided with situations, restored to their friends, or sent, after a probationary term, to other asylums; and it is gratifying to state that comparatively but few cases of disappointment have occurred.

OHIO LUNATIC ASYLUM.—The Lunatic Asylum at Columbus, (O.,) is now full, containing upwards of five hundred patients. In 14 years there have been admitted 2,116 patients, of which 1,038 were discharged recovered. What is very singular, it is stated that of the number admitted, 505 were farmers, being more than twelve times the number of any other occupation, except laborers, of which there were one hundred and sixty! The next highest on the list is teachers, being 40.

Perhaps the opponents of convict separation will account for this phenomenon on the ground that farmers are isolated, and have so little intercourse with any body or thing except oxen, horses or ploughs; but this would not account for the still more extraordinary proportion of *teachers* who (as others might contend) lost their wits for want of seclusion.

CONNECTICUT STATE PRISON.—The number of prisoners in the Connecticut State Prison at the close of the fiscal year, March 31, was 181; received from July 1, 54; discharged, 40. The balance gained to the Institution during the nine months, ending as above, was \$1,247. The Directors say that, under a resolution of the General Assembly, twenty of the convicts have been employed in the manufacture of school-apparatus, and the report very properly advises that these sets be sold to the School Societies 25 or even 50 per cent. below their actual cost.

What a pity it is they could not have taken the advantage of some school apparatus to fit themselves to obtain an honest livelihood. A strange anomaly this—convicts working for schools!

NOT MY MOTHER!—Well, do you see, at night we used to amuse each other by telling our tricks, urging one another on in daring vice and wickedness. Amongst us we had one uncommon bright girl—a first rate mimic, and she used to make us roar with laughter. Well, this fun had been going on for weeks; she had gone through most of her characters, from the governor to the turnkey, when she starts on a new tack, and commenced taking off Parson Cowper and Father Therry: some way it did not take, so she went back to Newgate and took off Mrs. Fry to the very life, but it would not do; we did not seem to enjoy it—there was no fun in it for us. So then, she began about the ships leaving, and our mother's crying, and begging of us to turn over a new leaf; and then, in a mimicking, jesting sport she sobbed, and bade us good-bye.

Well, how it happened I know not, but one after the other we began to cry and say, "Stay, not my mother! Not my mother!" Said one: "Let Mrs. Fry alone; Father Therry must not be brought here, nor Parson Cowper—stay, stay!" Well she did stop, but tears were shed the whole of that night. Every thing had been tried with me; good people had sought in vain to convince me of my evil ways; but that girl's ridicule of my mother I could not stand! Her grief was brought home to me, and not to me alone, but to many. I do believe that night was a great blessing to many. I was so unhappy, that the next day I tried to get out of sight to pray; and when I got to a hiding place I found three girls on their knees. We comforted each other, and then how we spoke of our mothers! Mine was dead; she left this world believing me past hope—but the picture of her grief made me earnest in search of that peace which endureth for ever.

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Transcriber's Notes

Punctuation errors have been fixed.

In the [Notices](#) at the start, “arranged and expresse” changed to “arranged and expressed”

[Article IV](#) has been renumbered from III in the original.

[Page 114](#): “to known how many” changed to “to know how many”

[Page 140](#): “cir-circuitous process” changed to “circuitous process”

[Page 154](#): “and my cutlash” changed to “and my cutlass”

The text from the inside back cover, which was a continuation of the [Recent Notices](#) section, has been relocated to the start so the section is complete.

*** END OF THE PROJECT GUTENBERG EBOOK THE
PENNSYLVANIA JOURNAL OF PRISON DISCIPLINE AND
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